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EXECUTIVE SUMMARY

El Salvador is a constitutional multiparty republic. In March 2009 voters elected Carlos Mauricio Funes Cartagena of the Farabundo Marti National Liberation Front (FMLN) as president for a five-year term in generally free and fair elections. Security forces reported to civilian authorities.

The principal human rights problems were widespread corruption, particularly in the judicial system; weaknesses in the judiciary and the security forces that led to a high level of impunity; and violence and discrimination against women.

Other human rights problems included isolated unlawful killings by security forces; lengthy pretrial detention; harsh, overcrowded, and dangerously substandard prison conditions; child abuse and child prostitution; trafficking in persons; violence and discrimination against sexual minorities; child labor; and inadequate enforcement of labor laws.

Although the government took steps to dismiss some officials who committed abuses in the penitentiary system and the police, impunity persisted.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

During the year there were no verified reports that the government or its agents committed politically motivated killings; however, there were reports that security forces were involved in unlawful killings. During the year the Office of the Ombudsman for Human Rights (PDDH) received seven complaints of alleged unlawful killings. Although the PDDH defines all killings by government personnel as "extrajudicial killings," there were no verifiable reports of deliberate unlawful killings carried out by order of the government or with its complicity. The National Civilian Police (PNC) Office of the Inspector

General (OIG) reported that during the year eight PNC officers were accused of homicide and that PNC officers had killed six persons. The OIG also reported that during the year 27 police officers had been arrested under homicide charges. The OIG did not specify whether the crimes were committed while on duty.

On January 27, a military patrol killed two Salvadoran men who were smuggling wood across the border with Honduras; the men reportedly had failed to stop when ordered to do so. On August 11, the San Francisco Gotera Sentencing Court (a civilian court) dismissed charges against nine soldiers. The Third Appellate Court of San Miguel upheld the ruling on appeal.

On March 8, the Inter-American Human Rights Commission (IACHR) filed a complaint before the Inter-American Court of Human Rights regarding extrajudicial killings committed by the Atlacatl Battalion in El Mozote in 1981 during the 1980-92 civil war. In August the court condemned the Salvadoran government for the disappearance of children in El Mozote. On December 10, the foreign minister, on behalf of the government, accepted responsibility for the massacre at a 30th anniversary commemoration at the site of the massacre.

On August 24, the Supreme Court of Justice stated it would not order the arrest of nine former military personnel wanted by Spain in relation to the unlawful killing of six Jesuit priests (five of them Spanish), their maid, and her daughter in 1989. The Supreme Court released the officers because it found the petition had been filed improperly.

b. Disappearance

There were no reports of politically motivated disappearances. The nongovernmental organization (NGO) Association for the Search for Missing Children (Pro-Busqueda) received 12 new complaints regarding children who disappeared during the civil war. It continued investigating 521 cases and resolved eight other cases by year's end. Pro-Busqueda complained that the government did not comply with Inter-American Court of Human Rights recommendations regarding the investigation and sanctioning of those responsible for the disappearance of children during the civil war.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices. On March 11, the Legislative Assembly amended the law on crimes against humanity to include a specific prohibition on torture.

However, during the year the PDDH received 53 complaints specifically against PNC officers for excessive use of force and 12 against members of the armed forces. It also received 166 complaints of torture and other inhuman or degrading treatment or punishment, and 846 complaints for violations of human integrity, 575 by PNC officers and the rest by armed forces personnel. During the year the OIG reported 75 complaints of torture by PNC officers. The Office of the Attorney General (OAG) reported four allegations that male guards raped women. In December 2010 the OIG filed charges against police officers suspected of involvement. Unlike the preceding year, the OAG did not report any rapes occurring in pretrial detention centers. The Ministry of Defense investigated all cases against members of the armed forces. On August 11, the San Francisco Gotera Sentencing Court (a civilian court) dismissed charges against nine soldiers accused of an extrajudicial killing at the Honduran border.

Prison and Detention Center Conditions

Prison and detention center conditions remained harsh and dangerous. Overcrowding constituted a serious threat to prisoners' health and lives. In many facilities provisions for sanitation, potable water, ventilation, temperature, and lighting were inadequate. In October 2010 the IACHR termed prison conditions deplorable, stating that there were construction deficiencies that led to safety hazards and a lack of sanitation. Also, the lack of potable water contributed to a high incidence of disease. On June 18, approximately 2,740 inmates in prisons in San Miguel, Ciudad Barrios, La Union, Usulután, Jucuapa, Gotera, and Chalatenango suffered food poisoning. On July 18, the PDDH stated that the penitentiary system had "collapsed." On October 5, the General Prison Directorate announced that the inmate population had increased 47 percent during the preceding five years.

Prison authorities reported that during the year 48 prisoners died due to natural causes, homicide, and suicide and that 22 prisoners died in prison riots and fights. For instance, on July 1, the Santa Ana Prison director declared a state of emergency after a riot in which three prisoners, two of whom were gang members, were killed and seven others injured.

The Prison Directorate reported that as of December 20, there were 25,294 prisoners, including 2,440 women, held in 21 correctional facilities and two secure hospital wards that have a combined capacity of 8,090. The prison population included 18,139 convicted prisoners and 7,155 inmates held in pretrial detention. Due to prison overpopulation, from June to November, authorities held approximately 2,325 pretrial detainees in small detention centers at police stations that had a combined capacity of 600. This temporary measure caused logistical problems at some police stations that were not prepared to feed inmates for more than 72 hours. The Prison Directorate discontinued the practice before year's end. Due to the lack of holding cells, pretrial detainees in regular prisons often were held together with violent criminals. Men were separated from women within the prisons. There is also a separate women's prison in Ilopango, which was generally clean and allowed the inmates to have children under age five stay with their mothers.

Gang activities in prisons and juvenile-holding facilities remained a serious problem. Detention center facilities held 9,575 inmates who were current or former gang members. Gang members were separated from the regular prison population when possible, but gangs continued to exercise influence within the prisons and judicial system.

There were 655 inmates in four prisons for juvenile offenders with a total capacity of 460 inmates.

Prisoners reportedly conducted criminal activities from their cells, at times with the complicity of prison guards. Smuggling of weapons, drugs, and other contraband such as cell phones and cell-phone chips was a major problem in the prisons. During the year prison authorities sanctioned 76 guards and did not renew the contracts of 121 others allegedly involved in corrupt activities.

Prisoners and detainees had reasonable access to visitors and were permitted religious observance.

Prison authorities permitted prisoners and detainees to submit complaints to judicial authorities without censorship and to request investigation of credible allegations of inhumane conditions. Prison authorities investigated such allegations, although investigation results were not always documented in a publicly accessible manner. Through August neither the PDDH nor the Prison Directorate reported any complaints against prison guards. There is no prison ombudsman. The government investigated and monitored prison and detention center conditions and permitted prison-monitoring visits by independent human rights observers, NGOs, and the media. Such visits occurred during the year.

d. Arbitrary Arrest or Detention

Although the constitution prohibits arbitrary arrest and detention, there were complaints that the PNC arbitrarily arrested and detained persons. During the year the PDDH reported receiving 187 complaints of arbitrary arrest or detention and 129 complaints of illegal detentions.

Role of the Police and Security Apparatus

The PNC is responsible for maintaining public security and the Ministry of Defense for maintaining national security. The military is tasked with carrying out three public security missions: guarding prisons, securing the international border, and patrolling with the PNC. President Funes authorized the military to provide support for PNC patrols in rural and urban areas and give support to law enforcement agencies. During the year military personnel were assigned to assist the PNC and Prison Directorate, but they do not have arrest authority. Although the government did not indicate a concluding date for the temporary assignment of the military to police duties, the decree authorizing the deployment was scheduled to expire in May 2012.

Inadequate training, lack of enforcement of the administrative police career law, arbitrary promotions, insufficient government funding, lack of a uniform code of evidence, and instances of corruption and criminality limited the PNC's effectiveness. The OIG reported that during the year authorities charged eight police officers with homicide; it also received 964 complaints of

alleged police misconduct. The OIG referred 679 of these cases to the OAG and sanctioned 919 officers in response to complaints filed during the year and in prior years. These sanctions included 107 officers dismissed for misconduct and 664 suspended without pay. The OIG also administratively arrested 148 police officers. The OAG investigated 364 cases against police officers, resulting in 258 procedures and 10 conviction sentences. Three procedures were resolved through mediation.

On November 16, Director of the National Public Security Academy Jaime Martinez stated that he dismissed 20 police officers for mistreatment of police cadets. On December 6, a PNC chief in San Miguel, Jorge Sanchez Granados, was arrested on fraud charges, following the arrest earlier in the month of 11 other police officers for various crimes.

On May 25, the Constitutional Chamber declared unconstitutional the Legislative Assembly's special committee that investigated PNC Inspector General Zaira Navas.

The OIG reported that most PNC officers and police academy cadets received human rights awareness training during the year, including training by the Salvadoran Institute for the Development of Women (ISDEMU), the Human Rights Institute of the University of Central America, and the Inter-American Institute of Human Rights.

During the year OIG and other organizations, including the Secretariat of Social Inclusion (SIS), provided human rights training to approximately 4,700 police officers.

Arrest Procedures and Treatment While in Detention

The constitution requires a written warrant for arrest, except in cases where an individual is arrested in the act of committing a crime. In practice authorities apprehended persons with warrants based on evidence and issued by a duly authorized official. The constitution grants detainees the right to a prompt judicial determination of the legality of their detention, and authorities generally respected this right in practice. In general detainees were promptly informed of charges against them.

The law permits release on bail for detainees who are unlikely to flee or whose release would not impede the investigation of the case. The bail system functioned adequately in most cases. Because it may take several years for a case to come to trial, some prisoners were incarcerated longer than the maximum legal sentences for their crimes. In such circumstances detainees could request a Supreme Court review of their continued detention.

On May 25, the Supreme Court dismissed First Penitentiary Surveillance Judge Dora Margarita Gomez because she did not duly process an inmate's petition claiming he was incarcerated beyond the term of his sentence.

The courts generally enforced a ruling that interrogation without the presence of counsel is coercion and that any evidence obtained in such a manner is inadmissible. As a result, PNC authorities generally delayed questioning until a public defender or an attorney arrived. Family members were allowed prompt access to detainees. Detainees generally had prompt access to counsel of their choice or to an attorney provided by the state.

The constitution permits the PNC to hold a person for 72 hours before delivering the suspect to court, after which the judge may order detention for an additional 72 hours to determine if an investigation is warranted. The law allows up to six months for investigation of serious crimes before requiring either a trial or dismissal of the case. In exceptionally complicated cases, the prosecutor may ask an appeals court to extend the deadline for three or six months, depending on the seriousness of the crime. Many cases were not completed within the legally prescribed time frame.

e. Denial of Fair Public Trial

Although the constitution provides for an independent judiciary, the judiciary suffered from inefficiency, corruption, political infighting, and insufficient resources. Substantial corruption in the judicial system contributed to a high level of impunity, undermining the rule of law and the public's respect for the judiciary. The criminal conviction rate was less than 5 percent. An ineffective public-security strategy, inadequate government funding and training of the PNC, and ineffective senior-level leadership made it difficult to identify, arrest, and prosecute perpetrators of human rights abuses and other crimes, thus diminishing public confidence in the justice system. Intimidation and killing of police officers, crime victims, and witnesses created a climate of fear, complicating investigation of violent crime and other alleged human rights abuses.

On June 2, the Legislative Assembly and President Funes approved Decree 743, which limited the independence of the Constitutional Court by requiring that the court's decisions be unanimous. On July 6, the president proposed a series of changes to the Constitutional Procedure Law to further limit the independence of the court. The limitations responded to a series of politically sensitive decisions made by the court in 2010 and 2011 that affected election laws, canceled certain political parties, and allowed independent candidates to run for office. On July 27, following protests from more than a dozen civil society organizations, the Catholic Church, and the IACHR, the Legislative Assembly repealed the decree. However, at year's end, the justices still faced the possibility of impeachment.

The Ministry of Justice operated witness and victim protection programs. According to the PNC, the programs provided protection to 101 persons during the year. However, in practice some judges denied anonymity to witnesses at trial, and gang intimidation and violence against witnesses contributed to a climate of impunity from criminal prosecution. On November 26, the OAG declined to appeal a judge's decision allowing the identity of a protected witness to be revealed. The same day, six relatives of the witness were injured when they were attacked with firearms; two died from their injuries.

On September 14, the PDDH accused the OAG of obstruction of access to justice, violation of due process, and failure to protect constitutional rights in 24 cases.

During the year the Supreme Court investigation unit received 219 complaints against judges, and the court ultimately dismissed two judges and suspended six others. The Supreme Court also submitted three cases to the OAG for investigation of possible judicial corruption. During the year the OAG investigated 50 complaints against prosecutors for misconduct. The investigations resulted in the dismissal of eight prosecutors and the suspension of 30 others.

Trial Procedures

Although juries were used for specific charges, including environmental pollution and certain misdemeanors, judges decided most cases. By law juries hear only cases that the law does not assign to sentencing courts. After the jury's determination of innocence or guilt, a tribunal decides the sentence.

Defendants have the right to be present in court, question witnesses, and present witnesses and evidence. Although the constitution further provides for the presumption of innocence, protection from self-incrimination, the right to legal counsel, freedom from coercion, access for defendants and their attorneys to government-held evidence relevant to their cases, and government-provided legal counsel for the indigent, these legal rights and protections were not always respected in practice. Although a jury's verdict is final, a judge's verdict can be appealed. Trials are public. The law extends these rights to all citizens.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Regional Human Rights Court Decisions

On August 31, the Inter-American Court of Human Rights reminded the government of its responsibility for the disappearances of children during the civil war and urged the state to investigate the cases and sanction those responsible for the disappearances.

Civil Judicial Procedures and Remedies

The law provides for access to the courts, enabling litigants to bring civil lawsuits seeking damages for, as well as cessation of, human rights violations. Domestic court orders were generally enforced.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution prohibits such actions, and the government generally respected these prohibitions in practice.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

Status of Freedom of Speech and Press

The constitution provides for freedom of speech and press, and the government generally respected these rights in practice. Individuals could criticize the government publicly or privately without reprisal, and the government generally did not interfere with such criticism. The law permits the executive branch to use the emergency broadcasting service to temporarily take over all broadcast and cable networks to televise political programming. The president occasionally used this law to highlight his accomplishments.

Violence and Harassment: On August 13, presidential security staff allegedly detained illegally photojournalist Nilton Garcia after he took photographs of President Funes exiting a shooting range in downtown San Salvador. According to a leading newspaper, security officers detained Garcia for several hours, deleted his photographs, and released him the same day.

Censorship or Content Restrictions: Although international NGOs generally commented positively on the status of press freedom in the country, newspaper editors and radio directors occasionally discouraged journalists from reporting on topics that the owners or publishers might not view favorably. Government advertising accounted for a significant portion of press advertising income, although exact data on such spending was not available publicly.

Libel Laws/National Security: On April 15, the IACHR criticized the September 2010 Supreme Court ruling declaring unconstitutional a section of Criminal Code Article 191 that provided immunity to publishers and owners of media against charges of defamation, slander, and libel. Most media saw this ruling as potentially infringing on freedom of the press. On September 8, the Legislative Assembly amended the criminal code, which had allowed imprisonment for those who commit defamation, slander, or libel, and replaced the punishment with fines. The assembly also added a provision for civil liability for defamation. In addition media publishers and editors are no longer liable for such crimes.

Nongovernmental Impact: The Salvadoran Journalists' Association noted that journalists reporting on narcotics trafficking were subject to threats and intimidation, which led to media self-censorship in reporting about such trafficking. On April 25, cameraman Alfredo Hurtado was killed while riding a bus in San Bartolo, Ilopango. The PDDH alleged that the killing was a targeted assassination of a police-friendly journalist in a gang-dominated area. Relatives of Hurtado said that he had received death threats from gangs. Police arrested a gang member for homicide on August 31, and the hearing was scheduled for February 2012.

On March 9, a court sentenced 11 gang members to prison for the 2009 murder of French-Spanish filmmaker Christian Poveda.

Actions to Expand Press Freedom

During the year the Salvadoran Association of Journalists offered training for media professionals on how to handle crises and provided information via social media on attacks against journalists.

Internet Freedom

There were no government restrictions on access to the Internet or credible reports that the government monitored e-mail or Internet chat rooms or attempted to collect personally identifiable information. Individuals and groups could engage in the expression of views via the Internet, including by e-mail.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events.

b. Freedom of Peaceful Assembly and Association

The constitution provides for freedom of assembly and association, and the government generally respected these rights in practice.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at 2009-2017.state.gov/j/drl/irf/rpt/2009-2017.state.gov/j/drl/rls/irf/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of movement within the country, foreign travel, emigration, and repatriation, and the government generally respected these rights in practice. The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to internally displaced persons, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern.

Protection of Refugees

Access to Asylum: The country's laws provide for the granting of refugee status or asylum, and the government has established a system for providing protection to refugees. As of August the government received 11 refugee petitions and granted two persons full refugee status.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides the right of citizens to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections based on universal suffrage.

Elections and Political Participation

Recent Elections: In March 2009 FMLN candidate Carlos Mauricio Funes Cartagena won the presidential election, which the Organization of American States and other international observers reported was generally free and fair with few irregularities. During the 2009 elections, as in prior elections, the main opposition political party, ARENA, and the FMLN accused each other of registering voters from other countries under the registration law, which allows a person to register with two witnesses who swear to his/her identity; however, no parties filed any formal complaints after the election.

In the January 2009 legislative elections, described as free and fair by international observers, no party won an outright majority.

Political Parties: Political parties could operate without restrictions or outside interference. On June 16, the Legislative Assembly passed a law to allow Salvadorans for the first time to vote for individual candidates instead of voting only for parties. On April 29, the Constitutional Chamber canceled El Salvador's oldest political parties, the National Conciliation Party and the Christian Democratic Party. Both parties registered as new political parties with similar logos and colors. The Supreme Electoral Tribunal (TSE) registered nine political parties plus five independent candidates to compete in the 2012 elections. Some independent candidates asserted that the TSE improperly denied their registration, and several reported receiving threats, which caused some of them to drop their candidacies.

Participation of Women and Minorities: There were 16 women in the 84-member Legislative Assembly, five women on the 15-member Supreme Court, and two women in the 13-member cabinet. No persons on the Supreme Court or in the legislature or other government entities identified themselves as members of an ethnic minority or indigenous community, and there were no political party positions or parliamentary seats designated for ethnic minorities.

Section 4. Official Corruption and Government Transparency

The law provides criminal penalties for official corruption; however, the government did not implement the law effectively, and officials, particularly in the judicial system, engaged in corrupt practices with impunity. The NGO Transparency International in December 2010 reported that government corruption was a serious problem, reflected by public perceptions of corruption in political parties, the police, judicial system, Legislative Assembly, and among public employees.

On July 15, prison authorities dismissed the entire guard force of Quezaltepeque Prison for suspected corruption and implemented new security measures after the discovery of a tunnel built by the M-18 gang.

NGOs, including the Salvadoran Foundation for Economic and Social Development (FUSADES), alleged that the Supreme Court did not adequately deal with corrupt judges and that perceived corruption and weak application of criminal law by judges contributed to a lack of confidence in the judiciary. FUSADES maintained a Web site that makes judicial proceedings and records available to the public.

Public officials were not subject to financial disclosure laws. The Court of Accounts, the Sub-Secretariat for Transparency and Anticorruption, the Anticorruption Unit of the OAG, the Supreme Court Probity Section, and the Government Ethics Tribunal (TEG) share responsibility for combating corruption.

During the year the Ethics Tribunal received 173 complaints involving 347 public officers; it processed 148 cases and submitted 19 to the OAG.

On August 22, online newspaper *El Faro* alleged that three Legislative Assembly deputies, including one former vice president, owned lands originally set aside for poor rural residents. The OAG began an investigation of a former president of the Salvadoran Institute of Agrarian Transformation for corruption in connection with the case, and the investigation was pending at year's end.

On November 30, the Appellate Court approved the release from house arrest of former minister of health Guillermo Maza, who had been arrested for embezzlement on April 5. PNC Deputy Director Rolando Garcia Herrera was placed under house arrest on August 23 for the same embezzlement case.

Following a year-long investigation, on October 11, the Fifth Court of Instruction issued a warrant for the arrest of former ANDA manager Mario Orellana on charges of laundering more than seven million dollars (the U.S. dollar is the national currency).

On May 18, the Legislative Assembly passed a law aimed at increasing transparency in public acquisitions.

As of August the TEG received 122 ethics complaints against public servants. Investigations resulted in public reprimands for seven government officials and the suspension of four others. To combat public sector corruption, the TEG operated ethics commissions within 79 of the 81 government entities required by law to have them.

On September 7, President Funes approved implementing regulations for the Public Information Access Law, which took effect May 8. The law provides for the right of access to government information. The new law establishes mechanisms to appeal denials. However, local media and NGOs contended that presidential approval of the five commissioners of the Public Information Institute potentially compromises their independence. President Funes had not approved the commissioners by year's end.

Citizens could access via the Internet some information regarding the national budget and certain cases before the Supreme Court. On August 24, FUSADES reported \$8.2 million in cash transfers from different executive branch offices for “unforeseen expenses.” The transfers did not have Legislative Assembly approval, which the law requires.

The government usually did not give reasons for denying public access to information.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Although government officials generally were cooperative and responsive to these groups, officials at times were reluctant to discuss worker rights issues with NGOs and the PDDH. Domestic and international NGOs were required to register with the government.

Government Human Rights Bodies: The principal human rights investigative and monitoring body is the autonomous PDDH, whose head is elected by the Legislative Assembly to a three-year term. The PDDH regularly issued reports and press releases on prominent human rights cases. The PDDH enjoyed government cooperation and operated without government or party interference, had adequate resources, and was considered generally effective.

The PDDH maintained a constructive dialogue with the President’s Office. The government publicly acknowledged receipt of PDDH reports, although in some cases it did not take action on PDDH recommendations, which are not legally binding.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Although the constitution and the legal code provide that all persons are equal before the law and prohibit discrimination regardless of race, gender, disability, language, or social status, in practice the government did not effectively enforce these prohibitions. There was discrimination against women; persons with disabilities; lesbian, gay, bisexual, and transgender (LGBT) persons; and indigenous people. The SIS, headed by First Lady Vanda Pignato, made efforts to overcome traditional bias in all these areas.

Women

Rape and Domestic Violence: The law criminalizes rape. While not specifically addressed in the law, spousal rape may be considered a crime if the actions meet the criminal code definition of rape. The law requires the OAG to prosecute rape cases whether or not the victim presses charges, and the law does not permit the victim’s pardon to nullify the criminal charge. The penalty for rape is six to 10 years’ imprisonment, but the law provides for a maximum sentence of 20 years for rape of certain classes of victims, including children and persons with disabilities.

Incidents of rape continued to be underreported for a number of reasons, including societal and cultural pressures on victims, fear of reprisal, ineffective and unsupportive responses by authorities toward victims, fear of publicity, and a perception among victims that cases were unlikely to be prosecuted. Laws against rape were not effectively enforced.

Rape and other sexual crimes against women were widespread. The OAG reported 2,264 cases of rape and four cases of sexual, physical, and psychological abuses of women by police officers during the year.

On March 28, First Lady and Secretary of Social Inclusion Vanda Pignato inaugurated the first “Ciudad Mujer” service center in Lourdes, Department of La Libertad, intended to provide comprehensive assistance to victims of gender violence. During the year ISDEMU provided health and psychological assistance to 158 women, 389 girls, and 13 boys who suffered sexual abuse.

The law prohibits domestic violence and provides for sentences ranging from one to three years in prison. The law also permits obtaining restraining orders against offenders. Domestic violence was considered socially acceptable by a large portion of the population, and, as with rape, its incidence was underreported.

Violence against women, including domestic violence, was a widespread and serious problem. Laws against domestic violence were not well enforced, and cases were not effectively prosecuted. During the year ISDEMU received 3,895 reports of domestic violence and provided medical and psychological assistance to 5,134 individuals for physical abuses, including sexual aggression, domestic violence, child abuse, sexual or labor harassment, commercial sexual exploitation, trafficking in persons, and alien smuggling. ISDEMU also reported 3,789 cases of "psychological abuse."

During the year the PNC investigated 1,752 cases of domestic violence, which resulted in five convictions, 487 trial procedures, and 201 cases resolved through mediation. As of November the OAG reported 594 women had died from violence. In March UN Special Rapporteur on Violence against Women Rashida Manjoo asserted that the country's "generalized state of violence" subjected women to murder, rape, domestic violence, sexual harassment, and commercial sexual exploitation.

ISDEMU coordinated with the judicial and executive branches and civil society groups to conduct public awareness campaigns against domestic violence and sexual abuse. The PDDH, OAG, Supreme Court, Public Defender's Office, and PNC collaborated with NGOs and other organizations to combat violence against women through education, increased enforcement of the law, and NGO support programs for victims. The SIS, through ISDEMU, defined policies, programs, and projects on domestic violence and continued to maintain a telephone hotline and a shelter for victims of domestic abuse and child victims of commercial sexual exploitation. The government's efforts to combat domestic violence were minimally effective.

Sexual Harassment: The law prohibits sexual harassment and provides penalties of imprisonment from three to five years if the victim is an adult and from four to eight years if the victim is a minor. Fines could also be imposed. The government did not enforce sexual harassment laws effectively. Since underreporting by victims of sexual harassment appeared to be widespread, it was difficult to estimate the extent of the problem. ISDEMU reported 101 cases of sexual harassment and 560 cases of sexual aggression. The OAG reported 590 complaints of sexual harassment during the year, of which 254 were brought to trial; 12 of these cases were resolved through mediation, and 39 resulted in convictions.

In June the government launched the Office of Citizen Complaints and Service to provide assistance to female victims of violence and physical abuse. There were no reports by year's end on its activities.

The law defines sexual harassment as any unwanted physical sexual contact and stipulates penalties of three to five years in prison (or four to eight years in cases where the victim is under age 15 at the time of the offense). Fines are added to the prison term in cases where the perpetrator is in a position of authority or trust over the victim.

Reproductive Rights: Couples and individuals had the right to decide the number, spacing, and timing of children, and information about and access to contraception was available widely. Demographic Health Surveys indicated that 72 percent of married women used some method of family planning. Prenatal care and skilled attendance at delivery were also readily available. The UN Population Fund estimated that the maternal mortality rate in 2008 was 110 deaths per 100,000 live births. Poverty, lack of education, and lack of access to a formal medical care system are the major factors contributing to a high maternal mortality rate. Women and men have equal access to diagnostic services and treatment for sexually transmitted infections.

Discrimination: The constitution grants women and men the same legal rights under family and property law, but women did not receive equal treatment in practice. The law establishes sentences of one to three years in prison for public officials who deny a person's civil rights based on gender, and six months to two years for employers who discriminate against women in the workplace. However, employees generally did not report such violations due to fear of employer reprisals.

Although pregnancy testing as a condition for employment is illegal, some businesses allegedly required female job applicants to present pregnancy test results, and some businesses illegally fired pregnant workers. During the year the Ministry of Labor received 62 complaints regarding illegal firing of pregnant workers, and imposed seven fines totaling \$771.

Although the law prohibits discrimination based on gender, women suffered from cultural, economic, and societal discrimination. Men often received priority in job placement and promotions, and women were not accorded equal treatment in traditional male-dominated sectors, such as agriculture and business. Training for women generally was confined to low-wage occupational areas where women already held most positions, such as teaching, nursing, apparel assembly, home industry, and small business.

On September 9, the police director created an internal agency tasked with increasing gender equality within the PNC. Women constituted 9 percent of PNC officers. On September 28, the Legislative Assembly created a new committee on “women and gender equality” and granted official recognition to an autonomous association consisting of female deputies.

Children

Birth Registration: Citizenship is derived by birth within the country and from one’s parents. The law requires parents to register a child within 15 days of birth or else pay a \$2.86 fine. While firm statistics were unavailable, many births were not registered. Failure to register resulted in a denial of school enrollment.

Education: Education is free, universal, and compulsory through the ninth grade and nominally free through high school. Rural areas frequently fell short of providing required education to all eligible students, due to a lack of resources and because rural parents often withdrew their children from school by the sixth grade to allow them to work.

Child Abuse: Child abuse was a serious and widespread problem. Incidents of rape continued to be underreported for a number of reasons, including societal and cultural pressures on victims, fear of reprisal against victims, ineffective and unsupportive responses by authorities toward victims, fear of publicity, and a perception among victims that cases were unlikely to be prosecuted. The Salvadoran Institute for Children and Adolescents (ISNA), an autonomous government entity, defined policies, programs, and projects on child abuse, maintained a shelter for child victims of abuse and commercial sexual exploitation, and conducted a violence awareness campaign to combat child abuse. As of September ISNA reported sheltering 598 abused children. During the year the OAG reported 1,254 cases of rape of minors.

Unlike in the previous year, there were no reports that the PNC targeted minors specifically for harassment or arbitrary detention.

Sexual Exploitation of Children: Sexual exploitation of children remained a problem, and there were credible reports that girls were forced into prostitution. Child sex trafficking is covered under the trafficking-in-persons statutes in the penal code, which prescribe penalties of four to eight years’ imprisonment for trafficking crimes. An offense committed against a child is considered as reflecting aggravated circumstance, and the penalty increases by one-third. However, the government did not effectively enforce these laws.

The law prohibits paying anyone under the age of 18 for sexual services. There were credible reports that girls were forced into prostitution. During the year, ISDEMU registered three cases of commercial sexual exploitation of children.

On October 20, a 16-year-old girl reported being forced into prostitution for approximately six weeks. The defendants threatened to harm the victim’s family. Two other girls were found at the same brothel.

On November 21, a judge dismissed charges against nine suspects in a trafficking case of a minor who was forced into prostitution.

The law prohibits participating in, facilitating, or purchasing materials containing child pornography and provides for prison sentences of up to 16 years.

The law classifies statutory rape as sexual relations with anyone under 18 years of age and provides for penalties between four and 20 years' imprisonment for those convicted of the crime. During the year the ISDEMU reported 402 cases of sexual abuse, and three cases of sexual commercial exploitation of minors; and the PNC reported 360 cases of rape of persons under 18 and 880 cases of sexual abuse.

International Child Abductions: The country is a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction.

Anti-Semitism

There were no reports of anti-Semitic acts. The Jewish community totaled approximately 150 persons.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at 2009-2017.state.gov/j/tip/ ([//2009-2017.state.gov/g/tip/](https://2009-2017.state.gov/g/tip/)).

Persons with Disabilities

The law prohibits discrimination against persons with physical and mental disabilities in employment, education, access to health care, or the provision of other state services. According to the National Council for Comprehensive Attention to Persons with Disability (CONAIPD), the government did not allocate sufficient resources to enforce these prohibitions effectively, particularly in education, employment, and transportation, and did not effectively enforce legal requirements for access to buildings, information, and communications for persons with disabilities. There are almost no access ramps or provisions for the mobility of persons with sight and hearing disabilities.

Only 5 percent of businesses and no government agency fulfilled the legal requirement of hiring one person with disabilities for every 25 hires.

On March 17, the Legislative Assembly amended the electoral code to allow deaf, blind, and mute people to run as municipal and legislative candidates.

Several public and private organizations promoted the rights of persons with disabilities, including the Telethon Foundation for Disabled Rehabilitation and the Salvadoran National Institute for the Disabled (ISRI). The Rehabilitation Foundation, in cooperation with ISRI, continued to operate a treatment center for persons with disabilities. However, CONAIPD reported that the government provided minimal funding for ISRI. The vast majority of persons with disabilities received care at home by relatives with little or no government support or supervision.

CONAIPD--composed of representatives of multiple government entities--is the government agency responsible for protecting disability rights, but it lacks enforcement power.

There were no reported patterns of abuse in prisons or in educational or mental health facilities, although CONAIPD reported isolated incidents, including sexual abuse, in those facilities.

CONAIPD reported that persons were fired after becoming disabled, persons with disabilities were not considered for work for which they qualified, and some schools would not accept children with disabilities due to lack of facilities and resources. There is no formal system for filing a complaint with the government.

During the year the SIS and CONAIPD conducted awareness campaigns, provided sensitivity training, promoted employment of persons with disabilities, and trained doctors and teachers about rights of persons with disabilities.

Indigenous People

While the constitution states that native languages are part of the national heritage and should be preserved and respected, the law does not recognize indigenous communities and accords no special rights to indigenous people. Births of indigenous persons were reportedly more likely not to be registered officially, reducing educational opportunities, since school registration requires a birth certificate.

Although few individuals publicly identified themselves as indigenous, members of a few small indigenous communities continued to maintain traditional customs without repression or interference by the government or nonindigenous groups. Government estimates in 2004, the most recent available, indicated that approximately 99 percent of indigenous persons lived below the poverty level.

No laws provide indigenous people rights to share in revenue from exploitation of natural resources on indigenous lands. During the year the PDDH reported that indigenous and nonindigenous communities protested construction of a hydroelectric dam in Nahuizalco. Although the indigenous communities asserted that the dam would destroy a cemetery and negatively impact several species of mollusks and fish in the Sunsunapan River, the Ministry of Environment authorized the dam. The government did not demarcate any lands as belonging to indigenous communities. Because few possessed title to land, opportunities for bank loans and other forms of credit were extremely limited.

On July 6, Nahuizalco enacted the first municipal law recognizing the origin and existence of indigenous persons and their right to practice their customs and beliefs and outlawing all forms of discrimination.

There were no government programs dedicated to combating discrimination against or communicating with indigenous persons. The PDDH reported that indigenous persons faced employment and workplace discrimination.

Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity

Although the law prohibits discrimination on the basis of sexual orientation, in practice discrimination was widespread. There was also significant discrimination against transgender persons.

There was widespread official and societal discrimination based on sexual orientation in employment and access to health care and identity documents. The NGO Entre Amigos reported that public officials, including the police, engaged in violence and discrimination against sexual minorities. Persons from the LGBT community stated that the agencies in charge of processing identification documents, the PNC and OAG, ridiculed them when they applied for identification cards or reported cases of violence against LGBT persons. The government responded to these abuses primarily through PDDH reports that publicized specific cases of violence and discrimination against sexual minorities.

On May 13, the SIS's Office of Sexual Diversity announced an awareness campaign and training on LGBT rights. Hundreds of government employees attended the training.

The PDDH reported receiving complaints about the killing of 13 persons from the LGBT community during the first half of the year, compared with two during 2010. On September 18, the Solidarity Association to Promote Human Development of Transsexual, Transgender, and Transvestite Men and Women stated that as of September, the media reported 17 killings; 23 cases of police mistreatment; and injuries to 13 individuals, three allegedly injured by police. They also reported six "hate crimes" and four attacks on LGBT persons.

Other Societal Violence or Discrimination

Although the law prohibits discrimination on the basis of HIV/AIDS status, in practice discrimination was widespread. Lack of public information and medical resources remained a problem in confronting discrimination against persons with HIV/AIDS or in assisting persons suffering from HIV/AIDS. On May 12, Rolando Cedillos, director of the HIV program in the main national hospital, stated that the government did not allocate enough resources for HIV patients. In 2010 the Ministry of Health

reported that 25,530 persons were infected with HIV, of whom 8,000 had AIDS. On December 14, the UNDP reported 1,436 new HIV cases and 73 new AIDS cases. A 2010 UNDP survey reported that 31 percent of persons infected with HIV/AIDS experienced some form of discrimination, including credible reports of denial of public services (such as schooling) and loss of employment. Persons denied entry into the armed forces charged that the military illegally required HIV testing for its soldiers.

On September 21, the Constitutional Chamber of the Supreme Court ordered the Salvadoran Social Security Institute (ISSS) to provide retroviral medicine to an HIV/AIDS patient who had requested it. The ISSS had denied the request because the medication was not commercially available in the country, a regulatory requirement. The court declared that the regulation violated the constitutional right to health.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides for the right of workers to form and join unions, provides for the right to strike, protects the right to bargain collectively in the private and public sectors, and prohibits antiunion discrimination. However, the law places several restrictions on these rights. Military personnel, national police, judges, high-level public officers, and workers who are in “positions of trust” are not permitted to form and join unions. The Labor Code does not cover public workers, who are regulated by the Civil Service Tribunal Law. During the year the Ministry of Labor enforced collective bargaining agreements selectively.

Although unions do not require prior authorization from the government, they must meet certain requirements to be legally registered, and unions must have a minimum of 35 members. The law permits the participation of noncitizens in unions, but requires that union leaders be citizens. On July 7, the Supreme Court of Justice issued an administrative ruling that limited union representatives’ labor activities to one day per week. On September 5, the PDDH urged the court to reconsider the ruling, alleging that it violated International Labor Organization (ILO) Convention 151.

The law does not recognize the right to strike for public and municipal employees, or for workers in “essential services.” It does not specifically designate which services are considered essential. The law places several other restrictions on the right to strike, including mandating that a strike must be supported by 51 percent of all workers in an enterprise to be legal. In addition unions may strike only to obtain or modify a collective bargaining agreement or to protect professional rights, and must engage in negotiation, mediation, and arbitration before striking. The union must notify the Ministry of Labor about planned strikes and wait four days from the time the ministry notifies the employer before striking. The law prohibits workers from appealing a government decision declaring a strike illegal.

The law does not require employers to reinstate illegally dismissed workers. The law specifies 18 reasons for which an employer can legally suspend workers, and employers can invoke 11 of these reasons without prior administrative or judicial authorization.

The government did not effectively enforce the laws on freedom of association and the right to collective bargaining in all cases. During the year the Ministry of Labor encouraged the formation of new unions and streamlined the union registration process. The ministry investigated allegations of violations of freedom of association and the right to strike, as well as reports of antiunion discrimination. For instance, the OAG reported that during the year, there were two investigations for violations of freedom of association and the right to strike, and nine cases under investigation for labor discrimination. During the year the ministry imposed 1,363 fines on employers for illegally firing 4,308 workers. Although not required by law, the Ministry of Labor requested some employers to rehire fired workers during the year, basing its requests on ILO Administrative Court rulings. The ministry did not perform inspections in the informal sector. The ministry does not have jurisdiction over public employees, who are governed by the Civil Service Tribunal Law.

Union representatives reported that labor rights were not consistently enforced for public workers, subcontracted workers in the construction industry, security guards, informal sector workers, and migrant workers. Judicial procedures were subject to lengthy delays and appeals.

In practice workers faced challenges in exercising their rights to freedom of association and collective bargaining, including allegations by some unions of government influence on union activities and antiunion discrimination on the part of employers. Unions were independent of the government and political parties, although many were generally aligned with the National Republican Alliance (ARENA), FMLN, or other parties. Some independent unions alleged that the Ministry of Labor interfered with their activities by encouraging the formation of “parallel unions” that supported the FMLN.

The SUTC construction workers union alleged that the Ministry of Labor illegally replaced its union leadership with FMLN supporters by refusing to recognize the results of its January 2011 elections. The ousted SUTC leadership filed a complaint before the Administrative Chamber of the Supreme Court against the ministry, which was pending at year’s end. There were also allegations that the ministry improperly revoked the credentials of a leader of the Santa Ana municipal workers union (SITRAMSA). In September the credentials of telecommunication workers union SITCOM and AVX Workers Union SITRAVX were revoked following a court decision that reversed a 2009 court ruling that had permitted them to register. Both unions alleged that the court decisions were due to judicial corruption.

There were reports of antiunion discrimination, including threats against labor union members, dismissals of workers attempting to unionize, and blacklisting. The OAG reported no developments in the investigation of the January 2010 murder of SITRAMSA leader Abel Victorio Vega. There were reports that SITRAMSA workers continued to receive death threats after a 2010 strike that was later declared illegal by the Santa Ana Labor Court. There were also reports factory owners paid union leaders not to unionize in some assembly plants.

In practice workers engaged in strikes regardless of whether legal requirements were met. In October the Ministry of Health threatened to fire health worker union members from Zacamil Hospital (SIMEHZAC) and the Ministry of Health (SITRASALUD) who went on strike to protest inadequate medical equipment, understaffing, and other problems. The unions ended their strike after the dismissal threat.

On March 3, the Federation of Public Workers of El Salvador (FESTRAPRES) alleged that the NEMTEX textile company had illegally dismissed workers who were trying to unionize. In September the Workers Union of the Confecciones Gama apparel assembly company (STECG) alleged that Gama fired workers for engaging in union activities and blacklisted them from obtaining work at other companies by providing personal information regarding the workers to other employers.

b. Prohibition of Forced or Compulsory Labor

The constitution prohibits forced or compulsory labor except in the case of natural catastrophe and other instances specified by law. In general the government effectively enforced such laws, and the Ministry of Labor reported it had received no complaints of forced labor during the year. However, there were anecdotal reports that some adults were subjected to forced labor in agriculture and in domestic servitude.

Also see the Department of State’s *Trafficking in Persons Report* at [//2009-2017.state.gov/j/tip/](https://2009-2017.state.gov/j/tip/) ([//2009-2017.state.gov/j/tip/](https://2009-2017.state.gov/j/tip/)).

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits the employment of children under age 14, except that children age 12 and older are allowed to engage in light work on coffee and sugar plantations and in the fishing industry, so long as it does not harm their health or interfere with their education. Children under age 16 are prohibited from working more than six hours per day and 34 hours per week; those under age 18 are prohibited from working at night or in occupations considered hazardous. In August the Ministry of Labor published a list of the types of work considered hazardous and prohibited for children, which includes repairing heavy

machinery; using chainsaws; mining; handling weapons, including knives and machetes, handling munitions and inflammable or radioactive substances; fishing and harvesting mollusks; working as stevedores; and working at heights above five feet while doing construction, erecting antennas, and working on billboards.

The Ministry of Labor was responsible for enforcing child labor laws but did so with limited effectiveness. The ministry attributed its limited enforcement to traditional cultural attitudes that support the use of child labor. In practice, the ministry's labor inspectors who were reportedly trained in child labor focused almost exclusively on the formal sector. The ministry reported that when inspectors encountered incidents of child labor, the government removed the victims and placed them in educational programs. During the year the ministry reported that two children had been removed from agricultural activities. The ministry reported it verified that these situations did not reoccur, and that it continued to monitor the area where this work was identified. There was no information on specific investigations or prosecutions. The ministry lacked adequate resources to enforce effectively child labor laws in the agricultural sector, especially in coffee and sugarcane production, or in the large informal sector.

During the year the Ministry of Labor conducted 12 campaigns to raise awareness about child labor. In March the government launched an interagency program to advance its Road Map to eliminate child labor in its worst forms by 2015 and in its entirety by 2020. The government continued to participate in an ILO project to provide educational opportunities to children while offering livelihood alternatives for their families. The Ministry of Education promoted child labor awareness and encouraged school attendance, including by operating 136 after-school programs during the year. The government also incorporated material on combating child labor into its elementary school curriculum.

Child labor remained a serious and widespread problem. The Ministry of Labor reported that during the year the government identified 90,905 minors working in the agriculture sector; 18,559 in manufacturing, commerce, and service industries; and 5,550 in domestic service. According to the 2010 School Registration Census, the most recent available, there were approximately 91,300 child workers, with the largest number engaged in agricultural work. The worst forms of child labor occurred in coffee and sugarcane cultivation, fishing, mollusk shucking, and fireworks production. There were reports of children engaged in garbage scavenging. Orphans and children from poor families frequently worked for survival as street vendors and general laborers in small businesses. Children also worked as domestic servants, and faced long work hours and abuse by employers. Children were subjected to commercial sexual exploitation (see section 6, Children). Children were recruited into illegal gangs to perform illicit activities related to the arms and drug trades, including homicide.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/programs/ocft/tda.htm (<http://www.dol.gov/ilab/programs/ocft/tda.htm>).

d. Acceptable Conditions of Work

There is no national minimum wage; the minimum wage is determined by sector. The minimum monthly wage was \$224.29 for retail and service employees, \$219.40 for industrial laborers, and \$187.68 for apparel assembly workers. The agricultural minimum wage was \$104.97 per month, although some agricultural workers, including coffee workers, were paid by the amount harvested rather than a daily wage. The government reported that the poverty income level was \$183.41 for urban areas and \$145 for rural areas.

The law sets a maximum normal workweek of 44 hours, limited to no more than six days, and to no more than eight hours per day, but allows overtime if a bonus is paid. The law mandates that full-time employees be paid for an eight-hour day of rest in addition to the 44-hour normal workweek. The law provides that employers must pay double time for work on designated annual holidays, as well as a Christmas bonus based on the time of service of the employee, and 15 days of paid annual leave. The law prohibits compulsory overtime.

The Ministry of Labor is responsible for setting workplace safety standards, and the law establishes a tripartite committee to review the standards. The law requires all employers to take steps to ensure that employees are not placed at risk to their health and safety in the workplace. In May 2011 a new workplace safety law took effect, although implementing regulations have not yet been put in place. The law promotes occupational safety awareness, training, and worker participation in

occupational health and safety matters. The new law also addresses sexual harassment, violence against women, and other workplace harassment issues. During the year ISDEMU reported 101 cases of sexual harassment and the OAG investigated 590 complaints of sexual harassment.

The law requires that employers provide preventive safety measures, including proper equipment and training, to employees, and a violence-free workplace, in order to reasonably ensure the safety and health of workers. Employers who violate the law can be fined, although penalties were often not sufficient to deter violations, and some companies reportedly found it more cost-effective to pay the fines rather than comply with the law.

The Ministry of Labor reported contradictory information regarding whether workers have the right to remove themselves from hazardous situations without jeopardy to their continued employment. The ministry noted that the government's ratification of ILO Convention 155 provides workers with the right to remove themselves; however, the ministry also reported that workers can be fired for refusing to undertake hazardous work. Employers cannot be compelled to rehire the workers but must compensate them, although workers generally were not informed about this right.

The Ministry of Labor is charged with enforcing the law. The government reportedly enforced effectively the minimum wage law in the formal sector but not in the informal sector, and unions reported that the ministry also failed to enforce the minimum wage for subcontracted workers hired for public reconstruction contracts. The government decreased its inspection force from 210 to 195 during the year. It provided updated training to its inspectors for both occupational safety and labor standards. During the year, the Ministry of Labor reported 15,950 inspections, which resulted in fines for 2,536 employers. There continued to be allegations of corruption among labor inspectors. As of October the ministry had submitted two cases of alleged corruption to the OAG.

The ministry received complaints regarding failure to pay overtime, minimum wage violations, unpaid overtime and unpaid salaries, as well as cases of employers illegally withholding benefits (including social security and pension funds) from workers. During the year, the OAG investigated 47 cases of illegally withheld benefits. The Ministry of Labor reported conducting 507 inspections as of September, resulting in 49 companies sanctioned with fines totaling \$8,992.73, mostly due to nonpayment of back wages. In December the ministry recommended that workers from the Royal Textiles Flexiler factory initiate legal proceedings against the factory for workers' social security and pension payments illegally withheld since November 2010.

According to the Ministry of Labor, immigrant workers have the same rights as Salvadorans, but, in practice, the ministry does not enforce these rights. In practice there were reports of overtime and wage violations in several sectors. For instance, from November 24 through 28, the Union of Employees of the Ministry of the Treasury (SITRAMHA) organized a work stoppage in the customs, air, and maritime terminals, alleging they were required to work between 13 and 16 hours per day without overtime pay. Workers sought a collective bargaining agreement, which was under arbitration at year's end. The government reported that, although apparel assembly plants generally respected the laws on overtime, some plants required workers to work extra days in order to meet production goals; however, the workers received incentive pay and overtime. During the year there were no developments in the Hermosa Manufacturing case. Workers in the construction industry were reportedly subject to violations of wage, hour, and safety laws. There were also reports of occupational safety and health violations in other sectors. For instance, on May 25, the former workers of the Record Battery Company demanded that the company pay for their treatment for lead contamination. As of August, the Social Security Institute had provided medical care to 154 workers.

In some cases, the country's high crime rate negatively impacted acceptable conditions of work, as well as workers' psychological and physical health. Some workers, such as bus drivers, bill collectors, messengers, and teachers in high risk areas reported being subject to extortion and death threats.

During the year, the Ministry of Labor reported 125 workplace accidents in 30 companies. The ministry reported that 64 percent occurred at aluminum and glass companies, warehouses, furniture companies, textile and apparel companies, and public institutions. Men (81 percent) suffered more accidents than women (19 percent). Most of the victims were between 18

and 31 years old (63 percent).

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